

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 06/30/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-01388
CASE NAME: JPMORGAN CHASE BANK N.A. VS. CHRISTINE FITZGERALD
*HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT FILED BY
PLN ON 3/17/26
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion, on 4/16/26, to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff

on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$19,251.26, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$11,314.26.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,937.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L24-03699
CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON
***HEARING ON MOTION IN RE: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AS TO JANICE ARMSTRONG**
FILED BY:
TENTATIVE RULING:
Background

Plaintiff filed against Defendant Smith a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), as well as sanctions.

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Attachment A of the declaration filed alongside the Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff also filed, within the declaration, an accounting of attorney fees and costs involved in the filing of this Motion, amounting to \$460.

Plaintiff filed proof that they served the Motion and notice of the hearing on counsel for

Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Defendant Smith is sanctioned in the amount of \$460.

Plaintiff to draw and file Order.

3. 9:00 AM CASE NUMBER: L24-03844

CASE NAME: CONNECT BY AMERICAN FAMILY VS. FATIMA CARLOS

***HEARING ON MOTION FOR DISCOVERY TO DEEM REQUEST FOR ADMISSIONS ADMITTED AND FOR SANCTIONS IN THE AMOUNT OF \$585**

FILED BY: CONNECT BY AMERICAN FAMILY

TENTATIVE RULING.

Plaintiff has filed a Motion to Deem Facts Admitted. There is no opposition, but the proof of service attached to the Motion indicates email service to the Defendant on 6/10/26. This is short of the 16 court days of notice required by the CCP (excluding the additional time required for email service).

What's more, even if the service had been timely, there is no indication that Defendant, who is self-represented, ever consented to service by email.

Disposition

This Motion will be continued to 9/22/26, 9am.

Plaintiff to file the order reflecting this ruling, and to properly serve Defendant with the Motion and notice of the motion date.

4. 9:00 AM CASE NUMBER: L24-05794
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. YEKATERINA RAMIREZ
***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**
FILED BY: JPMORGAN CHASE BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was provided in the Answer.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,867.14, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,200.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,667.14.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L24-06739

CASE NAME: JOHN LANGERSTON VS. JOHN KANG

HEARING IN RE: MOTION TO TAX COSTS

FILED BY:

TENTATIVE RULING:

Plaintiff has filed a Motion to Tax Costs, along with a Memorandum and Declaration. These documents were timely served on Defendant.

Defendant filed a response in Opposition.

Background

On 3/12/26, Defendant filed requests for costs associated with a judgement in Defendant's favor. That judgment occurred after a court trial in which the court rendered judgment for Defendant on 3/11/26.

In the declaration of Defendant's counsel, filed 3/12/26, Defendant, through counsel, provided a table of costs, that appears on the last page. These costs total \$1,095.64, and include matters such as: filing costs, mileage costs, and parking costs.

Plaintiff's Motion appears to challenge these costs.

In his Response, Counsel for Defendant provides documentation to support costs of \$1,405.35, which is a different amount than that stated in his memo of costs filed with the court, filed on 3/12/26.

Disposition

This Motion will be continued for Defendant to file a current memo of costs with the court, one that reflects the accurate amount of costs.

Motion will be continued to 9/22/26, 9am.

Court to file Order and provide notice to parties.

6. 9:00 AM CASE NUMBER: L24-09342

CASE NAME: WELLS FARGO BANK, N.A. VS. MARTIN GONZALEZ

***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON THE PLEADINGS FILED BY PLN ON 3/17/26**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on the address for Defendant provided in the Answer.

Plaintiff has also filed a declaration of costs and attorney's fees.

The Motion is unopposed.

Background

On 11/25/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 8/19/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 8/19/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the two causes of action, based on the allegation that Defendant became indebted in the amount of \$3,550.04, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered 11/12/25 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$3,550.04.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746

("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Costs and Attorney's fees total \$1,220.
2. Plaintiff shall file Order.

7. 9:00 AM CASE NUMBER: L25-02344

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ERICA MARRERO

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION PLAINTIFF, TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF VS. STIPULATED SETTLEMENT
FILED BY: JPMORGAN CHASE BANK, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed on counsel for the Defendant.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,704.93, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,700.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,004.93.

Plaintiff to file order on Motion, as well as submit Judgment.

8. 9:00 AM CASE NUMBER: L25-02661

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. JUSTIN EVERIDGE

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION PLAINTIFF, TO VACATE
DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF V.S. STIPULATED SETTLEMENT
FILED BY: JPMORGAN CHASE BANK, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.
The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was listed on the Answer.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,846.29, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$746.29.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$6,100.

Plaintiff to file order on Motion, as well as submit Judgment.

9. 9:00 AM CASE NUMBER: L25-04362

CASE NAME: CAPITAL ONE, N.A. VS. LUCILA RODRIGUEZ

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR ORDER THAT
MATTERS INV. REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED
FILED BY: CAPITAL ONE, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

10. 9:00 AM CASE NUMBER: L25-08723
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. SALVADOR VEGA
*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF
STIPULATED SETTLEMENT
FILED BY: JPMORGAN CHASE BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed an amended Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,747.03, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$497.03.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,250.

Plaintiff to file order on Motion, as well as submit Judgment.

11. 9:00 AM CASE NUMBER: L25-09401

CASE NAME: CAPITAL ONE N.A. VS. AMY NILSON

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

12. 9:00 AM CASE NUMBER: L25-09761
CASE NAME: JPMORGAN CHASE BANK N.A. VS. KATHERINE TSENG
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT
FILED BY:
TENTATIVE RULING:

Background

Defendant filed a Motion, on 3/27/26, to set aside the default judgment, which was filed on 3/25/26. Request for Entry of Default was filed on 3/17/26.

The Motion was properly noticed, and is unopposed.

Defendant cites mistake and inadvertence, claiming that she made numerous attempts to file an Answer to the Complaint, but had difficulty with the process of filing. She specifically cites procedural and formatting issues, along with providing proper fee waiver documentation.

Analysis

Defendant seeks relief under Section 473(b) of the CCP, which provides authority to the court to set aside a judgment in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect. The statute requires that the motion be made no later than 6 months from the time the judgment was taken.

In the instant matter, Defendant moved to set aside the Judgment only two days after Judgment was filed. Moreover, the court is not presented with any reason to doubt the veracity of her declaration that she would have timely filed an Answer had she not faced difficulty with procedural, formatting and other filing requirements.

Disposition

Defendant's Motion is granted.

Default Judgment and Entry of Default are set aside.

Defendant to file Answer within 10 days of 6/20/26.

Court will file the Order reflecting this ruling.

13. 9:00 AM CASE NUMBER: L25-10633

CASE NAME: WELLS FARGO BANK, N.A. VS. KAREN ENNIS

*HEARING ON MOTION FOR DISCOVERY TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AND OF NONAPPEARANCE

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), as well as a Declaration. Both were filed on 3/10/26.

Plaintiff attached the particular facts at issue, numbered One through Eleven and entitled, "Requests For Admission" in Exhibit A to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

14. 9:00 AM CASE NUMBER: L25-14118
CASE NAME: JPMORGAN CHASE BANK N.A. VS. ALEX GORBACHEVSKIY
***MOTION/PETITION TO COMPEL ARBITRATION TO COMPEL ARBITRATION AND MOTION TO QUASH SERVICE OF SUMMONS**
FILED BY: GORBACHEVSKIY, ALEX
TENTATIVE RULING:

Defendant filed a Motion on 3/16/26, to both Quash the Summons (Motion to Quash), arguing invalid service, as well as to Compel Arbitration (Arbitration Motion). Defendant also filed a Declaration, a Memorandum, and an Exhibit.

Copies of these documents were timely served on Plaintiff.

Plaintiff filed an opposition.

Background

The proof of service of process, filed on 1/26/26, and of which the court takes judicial notice, reflects that a registered process service served the process documents on a female adult who identified herself as a resident of the 687 Dolphin Drive address. Apparently, this adult then took receipt of the documents, claimed that either she or Defendant was not a resident, and then threw the documents to the ground.

The proof of service also reflects multiple, prior attempts of service at this address, and that the process documents were subsequently mailed to the address.

Defendant specifically claims that substitute service in this matter is invalid because the process papers were left outside on the curb of the residence. While Defendant contends he was not present during this event, he does appear to concede that a resident of the address was in fact present. He also does not appear to dispute that he actually received the process documents.

The Plaintiff, in their opposition, concedes that litigation should be suspended and that arbitration should begin. The only dispute that remains on this particular issue is over which party should trigger the arbitration process. Defendant claims that that burden rests with Plaintiff.

The language of the cardmember agreement, provided in Defendant's Exhibit A, includes the following language:

“Under this agreement to arbitrate, the party filing a Claim must select either Judicial Arbitration and Mediation Services ('JAMS') or the American Arbitration Association (“AAA”) as the arbitration administrator.” (P. 10, Exhibit A.)

Analysis

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant’s actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, “[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service.” *Summers v. McClanahan* (2006) 140 CA4th 403, 413.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Evidence Code Section 647*.

Service of process by delivering copies of the documents to someone other than defendant, and then subsequently mailing copies to the defendant, is permissible. *CCP 415.20(b)*. This service can occur at the defendant’s “dwelling house [or] usual place of abode ... in the presence of a competent member of the household or a person apparently in charge of his or her ... usual mailing address.” *Id.*

These provisions are to be liberally construed if actual notice has been received by the defendant. *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App. 4th 1387, 1392 (substitute service found where gate guard to a home was given authority to control access to appellants’ home; the gate guard’s relationship with appellants made it more likely than not that he would deliver process to appellants).

The test of whether substitute service is valid is whether the service is “reasonably calculated to give an interested party actual notice of the proceedings and an opportunity to be heard ... [in order that] the traditional notions of fair play and substantial justice implicit in due process are satisfied.” *Id.*, quoting *Zirbes v. Stratton* (1986) 187 Cal.App.3d 1407, 1416.

There are prerequisites for substitute service. The plaintiff must first make a good faith effort to personally serve the defendant. “Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as “reasonable diligence.”” *Rodriguez v. Cho* (2015) 236 CA4th 742, 750, quoting *American Express Centurion Bank v. Zara* (2011) 199 CA4th 383, 389.

In the instant matter, the court finds that Plaintiff exercised reasonable diligence in

attempting to personally serve Defendant, and that Plaintiff also mailed a copy of the process documents to Defendant after the apparent substitute service.

Further, even assuming that the statement of the process server reflecting personal service on the resident of the address is false, the code does not require this. The leaving of the documents in the *presence* of a competent adult of the household suffices. It is worth noting that while Defendant writes in his declaration that the documents were left on the curb, he does not dispute the account of the process server that the third-party adult of the household threw them.

Finally, it is worth noting that Defendant does not actually dispute that he actually received the process documents.

For all these reasons, this court finds, by a preponderance of the evidence, that valid service of process occurred through substitute service.

Next, the cardmember agreement is a contract between the parties, which explicitly requires the party electing arbitration to select an arbitrator. The only reasonable inference from this language is that the burden rests with the electing party to begin the arbitration process by selecting an arbitrator.

Disposition

Defendant's Motion to Quash is Denied.

Defendant's Motion to Compel Arbitration is granted. Court proceedings will be stayed pending arbitration.

Defendant to begin the arbitration process by selecting and contacting the arbitrator, and to follow other steps as reflected in the Cardmember Agreement.

Further CMC will be 12/2/26, 8:30am.

Court to file Order.

Court to provide notice of CMC.

15. 9:00 AM CASE NUMBER: L25-14143
CASE NAME: JPMORGAN CHASE BANK N.A. VS. ALEX GORBACHEVSKIY
*MOTION/PETITION TO COMPEL ARBITRATION TO COMPEL ARBITRATION AND MOTION TO
QUASH SERVICE OF SUMMONS
FILED BY: GORBACHEVSKIY, ALEX
TENTATIVE RULING:
NEEDS NEW DATE

Defendant filed a Motion on 3/16/26, to both Quash the Summons (Motion to Quash), arguing invalid service, as well as to Compel Arbitration (Arbitration Motion). Defendant also filed a Declaration, a Memorandum, and an Exhibit.

Copies of these documents were timely served on Plaintiff.

Plaintiff filed an opposition.

Background

The proof of service of process, filed on 1/26/26, and of which the court takes judicial notice, reflects that a registered process service served the process documents on a female adult who identified herself as a resident of the 687 Dolphin Drive address. Apparently, this adult then took receipt of the documents, claimed that either she or Defendant was not a resident, and then threw the documents to the ground.

The proof of service also reflects multiple, prior attempts of service at this address, and that the process documents were subsequently mailed to the address.

Defendant specifically claims that substitute service in this matter is invalid because the process papers were left outside on the curb of the residence. While Defendant contends he was not present during this event, he does appear to concede that a resident of the address was in fact present. He also does not appear to dispute that he actually received the process documents.

The Plaintiff, in their opposition, concedes that litigation should be suspended and that arbitration should begin. The only dispute that remains on this particular issue is over which party should trigger the arbitration process. Defendant claims that that burden rests with Plaintiff.

The language of the cardmember agreement, provided in Defendant's Exhibit A, includes the following language:

"Under this agreement to arbitrate, the party filing a Claim must select either Judicial Arbitration and Mediation Services ('JAMS') or the American Arbitration Association ("AAA") as the arbitration administrator." (P. 10, Exhibit A.)

Analysis

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, “[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service.” *Summers v. McClanahan* (2006) 140 CA4th 403, 413.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Evidence Code Section 647*.

Service of process by delivering copies of the documents to someone other than defendant, and then subsequently mailing copies to the defendant, is permissible. *CCP 415.20(b)*. This service can occur at the defendant’s “dwelling house [or] usual place of abode ... in the presence of a competent member of the household or a person apparently in charge of his or her ... usual mailing address.” *Id.*

These provisions are to be liberally construed if actual notice has been received by the defendant. *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App. 4th 1387, 1392 (substitute service found where gate guard to a home was given authority to control access to appellants’ home; the gate guard’s relationship with appellants made it more likely than not that he would deliver process to appellants).

The test of whether substitute service is valid is whether the service is “reasonably calculated to give an interested party actual notice of the proceedings and an opportunity to be heard ... [in order that] the traditional notions of fair play and substantial justice implicit in due process are satisfied.” *Id.*, quoting *Zirbes v. Stratton* (1986) 187 Cal.App.3d 1407, 1416.

There are prerequisites for substitute service. The plaintiff must first make a good faith effort to personally serve the defendant. “Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as “reasonable diligence.”” *Rodriguez v. Cho* (2015) 236 CA4th 742, 750, quoting *American Express Centurion Bank v. Zara* (2011) 199 CA4th 383, 389.

In the instant matter, the court finds that Plaintiff exercised reasonable diligence in attempting to personally serve Defendant, and that Plaintiff also mailed a copy of the process documents to Defendant after the apparent substitute service.

Further, even assuming that the statement of the process server reflecting personal service on the resident of the address is false, the code does not require this. The leaving of the documents in the *presence* of a competent adult of the household suffices. It is worth noting that while Defendant writes in his declaration that the documents were left on the curb, he does not dispute the account of the process server that the third-party adult of the household threw them.

Finally, it is worth noting that Defendant does not actually dispute that he actually

received the process documents.

For all these reasons, this court finds, by a preponderance of the evidence, that valid service of process occurred through substitute service.

Next, the cardmember agreement is a contract between the parties, which explicitly requires the party electing arbitration to select an arbitrator. The only reasonable inference from this language is that the burden rests with the electing party to begin the arbitration process by selecting an arbitrator.

Disposition

Defendant's Motion to Quash is Denied.

Defendant's Motion to Compel Arbitration is granted. Court proceedings will be stayed pending arbitration.

Defendant to begin the arbitration process by selecting and contacting the arbitrator, and to follow other steps as reflected in the Cardmember Agreement.

Further CMC will be 12/2/26, 8:30am.

Court to file Order.

Court to provide notice of CMC.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: MS26-0392
CASE NAME: TILDEN - OAKMONT WEST LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS.
JACQUELINE GALLARDO
JURY TRIAL
FILED BY: GALLARDO, JACQUELINE
TENTATIVE RULING: